

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Miguel Camnitzer	Team: Team # 6	CCRB Case #: 200306445	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 08/14/2003 12:20 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/14/2005	Precinct: 77
Date/Time CV Reported Thu, 08/14/2003 12:20 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 08/22/2003 5:21 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Richard Pentangelo	29703	927716	077 PCT
2. POM Matthew Granahan	26635	926899	077 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Matthew Granahan	Discourtesy: PO Matthew Granahan spoke obscenely and rudely to § 87(2)(b)	A . Complaint Withdrawn
B . POM Richard Pentangelo	Discourtesy: PO Richard Pentangelo spoke obscenely and rudely to § 87(2)(b)	B . Complaint Withdrawn

Synopsis

§ 87(2)(b) contacted 911 on August 14, 2003 at approximately 12:20am to report that her landlord, § 87(2)(b), and another unidentified male, had been removing her belongings from her apartment at § 87(2)(b) in Brooklyn and placing them on the street. She explained that she was 2 months in arrears of her rent. Her son, § 87(2)(b), pulled out a knife in an effort to intimidate the landlord into ceasing his action. The landlord contacted 911. PO Richard Pentangelo and PO Matthew Granahan (identified by the shield numbers that § 87(2)(b) provided) responded to the call. § 87(2)(b) alleged that when the officers arrived they were rude to her, refused to listen to her side of the story, and both told her, “Shut the fuck up! The landlord can fucking do that!” § 87(2)(b) admitted that she stated, “Fuck you” to the officers and they responded in the same manner. § 87(2)(b) left before the officers arrived. His girlfriend § 87(2)(b) witnessed the alleged misconduct.

When § 87(2)(b) contacted 911 she was transferred to IAB (log #03-20032). IAB referred spin off #03-20319 to Chief of Department to determine appropriateness of police action and referred discourtesy to the CCRB on 8/22/03 at 5:21pm.

This investigator contacted § 87(2)(b) at her home on 9/2/03 and scheduled her to come in for a statement on 9/8/03 at 2pm. § 87(2)(b) did not show up for her appointment, and a missed appointment letter was sent to her home. This investigator spoke to § 87(2)(b) on 9/9/03 and she expressed uncertainty as to whether she wished to pursue the complaint. She requested time to consider it. Over the next few days this investigator left 3 messages for § 87(2)(b) to contact CCRB. On 9/15/03 she called and stated that she wished to withdraw her complaint, § 87(2)(b). She confirmed for the record that she was not coerced into withdrawing her complaint and was doing so of her own free will. A Complaint Withdrawal letter was sent to her home.

Supervising Investigator Szekely reviewed § 87(2)(b) withdrawal statement and confirmed that § 87(2)(b) did so of her own free will. Therefore it is recommended that this case be closed as **Complaint Withdrawn**.

Investigator:	Date:
Supervisor:	Date:
Reviewed by:	Date:
Reviewed by:	Date: